

24PSCV00596 24PSCV00596

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Case Number: 24PSCV00596 Hearing Date: July 30, 2026 Dept: O

Tentative Ruling

MOTION TO

STRIKE DEFENDANT FROILAN BARRIOS CALDERA'S ANSWER AND REQUEST FOR ENTRY OF DEFAULT is DENIED; there is no pattern of ongoing, willful refusal to comply with court orders.

Background

This case

arises from a motor vehicle accident that happened on 12/25/23.

On February

27, 2024, Plaintiff Moises Sanchez filed suit against Mariela Barrios for (1) Motor Vehicle and (2) General Negligence.

On March 26,

2024, Defendant Barrios filed an answer. (The answer was filed pro per.)

On April 19, 2024, Plaintiff filed an

'amendment to complaint' naming Froilan Barrios Caldera ("Defendant Froilan") as Doe 6.

On June 26, 2024, FLOIRAN BARRIOS CALDERA filed an answer. (The answer was filed pro per.)

On July 23, 2024, there was a CMC; according to the minute order, there

were appearances
by Defendants but not by Plaintiff.

On September
9, 2024, there was an IDC; there
were no appearances made by Defendants such that the court permitted the
filing of a formal motion and set OSCs.

On September 23, 2024, there was a CMC; both Defendants appeared.

On March 3, 2025, the parties attended
another CMC; both
Defendants
appeared. According to
the MO, "The Court, Counsel for Plaintiff, and the Defendants confer regarding
the status of this case. Counsel for Plaintiff represents that the insurance
carrier for the Defendants is denying coverage. The courtroom staff provides
the Defendants with contact information for Counsel for Plaintiff. The Court
rules as follows: The Defendants are directed to contact Counsel for Plaintiff
forthwith. Should Counsel for Plaintiff and the Defendants not meet and confer
regarding any discovery issues, Counsel for Plaintiff is directed to file a
request for an Informal Discovery Conference (IDC)."

On September 9, 2025, there was an IDC; there
were no appearances by Defendants. An Order to Show Cause Re: Why the Court
Should Not Issue Monetary Sanctions Against the Defendants for Their Failure to
Appear at 09/09/2025 Hearings was scheduled.

On September 10, 2025, Plaintiff a motion to
deem RFAs admitted re: Defendant Caldera, which was unopposed. (On March 11, 2025, Plaintiff
served Defendant Calendar with RFAs, Set One. Defendant did not provide any
responses.)

On November 18, 2025, the court granted
Plaintiff's RFA motion; neither
Defendant appeared at the hearing such that the court set various OSCs.
In addition, the court "orders sanctions against both Defendants, Mariela
Barrios and Froilan Barrioscaldera in the sum of \$100.00 each payable to
Counsel for Plaintiff, Oscar Lopez, by 01/02/2026."

On April 28,
2026, the instant motion was filed.

To date, as
of July 24, 2026, no opposition has been filed.

Discussion

Plaintiff seeks to strike
Defendant Froilan's answer because he "abandoned participation in the
case...ignored discovery, ignored Court orders, failed to meet and confer, and
has repeatedly failed to appear in Court for any and all hearings."
(Motion p. 3:4-8, italics added.) A trial court weighs the following factors when considering
whether to impose a terminating sanction: (i) Whether the party's actions were
willful; (ii) The detriment to the party seeking discovery; and (iii) The number of formal and informal
unsuccessful attempts to obtain discovery. (See e.g., *Lang v. Hochman*
(2000) 77 Cal.App.4th 1225, 1246.) For reasons to be explained below, the court declines to take such
extreme measures.

While Plaintiff
argues that Defendant Froilan's conduct "exceeds the patterns of misuse that
courts in *Atlas v. Davidyan* and *Liberty Mutual v. LcL Administrators*"
to justify terminating sanctions those cases actually militate against the
striking of his answer and entering default. The court will address each case.

In *Atlas*, the plaintiff filed suit against the
defendant alleging that she was misled into signing documents believing that
she was getting a loan from the defendant, not conveying the property to him. (*Id.*
at p. 1090.) The defendant represented himself pro per. The discovery dispute
that led to the terminating sanctions was as follows: the plaintiff filed her
first two motions to compel, but the defendant failed to respond in a timely
manner; his ultimate responses then contained meritless objections; meet and
confer attempts had been unavailing; despite giving the defendant the opportunity to provide supplemental
responses, the defendant failed to do so; plaintiff then filed another
motion alleging that the defendant failed to respond to interrogatories despite
several extensions of time; as the defendant repeatedly failed to respond to
discovery, the court granted the motion; the court then held another hearing
regarding discovery; by this point, plaintiff had filed five motions to compel;
then the plaintiff filed a motion for terminating sanctions because the
defendant failed to appear

for deposition and failed to respond to discovery and pay the associated sanctions; the motion was supported by counsel's declaration "detailing numerous attempts to obtain defendant's compliance with discovery requests"; at the hearing, the court declined to impose terminating sanctions but "discussed the law of incremental sanctions"; the court then ordered the defendant to comply with the prior order(s); the plaintiff then filed another motion for terminating sanctions which was granted in part; the court found "willful" conduct because the defendant "engaged in substantial motion practice that demonstrate[d] an understanding of the law and an ability to convey legal arguments in writing"; the plaintiff then filed a ninth and final discovery motion; the defendant again refused to provide written discovery; ultimately, nearly two years after the discovery dispute began, the court entered struck the defendant's answer.

Here, the facts are starkly different. There was one discovery motion and Plaintiff's counsel's declaration does not "detail" meet and confer efforts regarding other outstanding discovery.[1] With the record before the court, this court cannot make a finding of wilfull disobedience and complete lack of disengagement with the lawsuit. To the extent that Plaintiff argues Defendant has refused to comply with court orders (plural), hearings (e.g., CMCs) are not orders. Not only that, but the court's November 18, 2025 order regarding discovery required no further responses since it was an RFA motion. All in all, while in Atlas there were multiple orders that the defendant refused to comply with (i.e., failed to provide the discovery and failed to pay sanctions), such a record is not before this court.

Liberty Mutual Fire Ins. Co. v. LcL Administrators (2008) 163 Cal.App.4th 1093 (Liberty) also does not support striking Defendant's answer as Liberty too involved ongoing and repeated discovery violations by the defendant. Not only did the defendant fail to provide the responses as ordered in two court orders, but in Liberty, the court went so far as to say that the defendant's "assertion that it did not have any information to support its claims because none of the relevant documents was in its possession is insincere, if not downright deceptive." (Id. at p. 1103.) The obfuscation, game playing, refusal to respond to meet and confer letters, and parroting of the same answers were characterized as "willful." (Id. at pp. 1102-1103.) The appellate court determined that there was "no" abuse of discretion by the trial court. (Id. at 1106.) As stated above, there is no pattern of willfully refusing to comply with multiple court orders.

Here, at most what the record shows are pro per defendants who do not speak English, whose insurance has declined to provide coverage, and who are perhaps uncertain how to navigate this lawsuit.[2]

In sum, as iterated by the Liberty court, “Only two facts are absolutely prerequisite to imposition of the sanction: (1) there must be a failure to comply ... and (2) the failure must be wilful.” (Id. at p. 1102.) While Defendant may be on the trajectory towards willful noncompliance, at this juncture, there is no clear showing of such.

Conclusion

Based on the foregoing, the motion is denied.

[1] To the extent that Plaintiff argues terminating sanctions are warranted Defendant has failed “to respond to proper and timely served discovery” (i.e., plural), the court only had one discovery motion before it. (Motion p. 2:5-6.)

[2]

The court acknowledges that a litigant appearing in propria persona is “held to the same restrictive rules of procedure as an attorney” such that the court is not reducing what is required of Defendants in this case. (County of Orange v. Smith (2005) 132 Cal.App.4th 1434, 1444.)